

M/S Aditri Agro Infratech Pvt. Ltd. v. State of U.P.

Allahabad High Court (Lucknow Bench) · Division Bench · 10 February 2025 · 2025:AHC-LKO:8487-DB · Writ-C No. 976 of 2025 · **Petition disposed of; licensee to decide restoration within three weeks.**

HEADNOTE

IBC successor seeking restoration at premises with prior dues, relying on Tata Power (Jagannath Sponge) and met by clause 4.1(3) of the U.P. Electricity Supply Code, 2005. Without deciding either contention, the Court directed the licensee to communicate within three weeks whether restoration can be granted and, if not, the reasons, after considering any representation.

FACTUAL SUMMARY

The petitioner, having taken over M/s Chittpurni Engineering Works Pvt. Ltd. under an NCLT order dated 12.05.2023, sought restoration of electricity at premises in Nawabganj, Barabanki, on which prior dues existed. It relied on the Supreme Court's Tata Power (Jagannath Sponge) order dated 11.09.2023 to say arrears could not be a precondition. The licensee said the IBC resolution was not a clear-slate case and invoked clause 4.1(3) of the U.P. Electricity Supply Code, 2005, requiring dues to be cleared before restoration.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

restoration-subject-to-prior-dues

HOLDING

Without deciding whether Tata Power's clear-slate principle or para 4.1(3) of the U.P. Electricity Supply Code, 2005 (cited as requiring clearance of premises dues before a new connection or restoration) governed the claim, the Court directed respondent no.3 to communicate within three weeks its decision on whether restoration could be granted and, if not, the reasons; any representation already made was to be considered. The writ was disposed of. ¶ 3-4

FLAG as_cited

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER TATA POWER / IBC CLEAR-SLATE BARS DEMAND OF PRIOR PREMISES ARREARS AS A PRECONDITION FOR RESTORATION

¶ 2-3

NOT DECIDED — WHETHER CLAUSE 4.1(3) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 REQUIRES CLEARANCE OF PREMISES DUES BEFORE RESTORATION OR A NEW CONNECTION

¶ 3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Tata Power Western Odisha Distribution Ltd. v. Jagannath Sponge Pvt. Ltd.</i> Civil Appeal No. 5556 of 2023 (order dated 11.09.2023)			2-3	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.